

INTER-DEPARTMENTAL CORRESPONDENCE

TO: Seema Somani
1219 CITY HALL
ACCOUNTING

DATE: 4/17/2023

FROM: 32 BUILDINGS

SUBJECT: CONTRACTS

CHANGE ORDER

PLEASE: ENCUMBER:

XXX

DISENCUMBER:

CONTRACT NUMBER

93002507

VENDOR NAME

LIRO

VENDOR ID

3059

ACCOUNT CHARGEABLE

33224006- 445100

AMOUNT

\$14,950.00

EXPLANATION:

Please encumber additional \$14,950.00 to this contract from account 33224006 - 445100 per the attached Council approval for a new contract total of \$218,547.00.

DEPARTMENT HEAD SIGNATURE

4/17/2023



The City of Buffalo Common Council

1413 City Hall
Buffalo, NY 14202

ADOPTED

AGENDA ITEM 23-487

Meeting: 04/04/23 02:00 PM
Department: Buildings
Category: Change Order
Prepared By: Tara McCarter-Jefferson
Initiator: Tara McCarter-Jefferson
Sponsors:
DOC ID: 21222 A

Change Order 2 – Police Training Facility – the LiRo Group

The Department of Public Works, Parks and Streets, Division of Buildings, hereby submits to Your Honorable Body a change order for contract 93002507 with The LiRo Group for the Police Training Facility project. The recommended change order is submitted in accordance with Chapter 96-14 of the City Code and is in the amount of \$15,030.00.

This change order is necessary due to unforeseen conditions during the execution of the contract. During design Buffalo Police requested additional scope and design for the new Police Training Facility to better serve BPD. The design phase also occurred during the COVID 19 pandemic which resulted in escalated construction costs. The original bids for the project exceeded the funds currently available in the accounts and the electrical contractor was unable to hold their bid, therefore the A/E must rebid this portion of the work at an additional cost. The change order would cover this cost to rebid the project. The additional scope of the design also increased the work required during construction administration. This change order will cover the additional construction administration costs.

Funds for this change order are available in account 33224006-445100. This is the second change order for this contract. The following is a summary of the current contract status.

Original Contract Award:	\$196,656.00
Previously Approved Change Orders:	\$6,941.00
Present Amount of the Contract:	\$203,597.00
Proposed Change Order:	\$15,030.00
New Contract Amount:	\$218,627.00

The DPW hereby certifies that this change order is necessary and justifiable in accordance with the terms of the contract agreement. We respectfully request that Your Honorable Body approved this change order as described above.

RESULT:	APPROVED
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Form of Amendment

Owner:

22-Mar-23

City of Buffalo

Project:

Buffalo Police Training Facility, Seneca Street

Amendment No.: 2

Consultant:

Revision No.: 0

LiRo Engineers Inc.

690 Delaware Avenue, Buffalo NY

Subject matter of this amendment [describe changes to the Work, Facility, etc. or Excusable Event]:

See conditions below

The original Contract Price was	\$196,656.00
The net change by previously authorized Change Orders	\$6,941.00
The Contract Price prior to this Change Order was	\$203,597.00
The Contract Price will be increased by this Change Order in the amount of	\$14,950.00
New Contract Price	\$218,547.00

OTHER CONDITIONS:

The detailed cost estimates supporting this Change Order are attached.

1. Additional construction services during upcoming construction. Original proposal (July 2019) was based on and estimated project cost of \$1,100,000. The sum of the GC, H, & P bids plus the estimate for the E-contract is approximately \$3,500,000. Additional labor during construction will be needed to address the additional complexity of the project. Additional Fee \$14,950.

Adjustments to Agreement Terms: None.

All provisions of the Contract Agreement, except as modified by the Change Order above or by previous Change Orders, remain unchanged.

Consultant Acceptance:

LIRO ENGINEERS, INC.

Signature: _____

Printed Name: Bruce J. Przybyl

Title: Project Manager

Date: 3/22/2023

Owner Acceptance:

CITY OF BUFFALO

Signature: _____

Printed Name: FRANCESCO GURMATIN

Title: Deputy Commissioner

Date: 4/17/2023

Addendum No.2

**Request for Proposals
BUFFALO POLICE SHOOTING RANGE FACILITY
JOB # 1917**

	LUMP SUM FEES	ANTICIPATED HOURS
1. Pre-Design, Scoping & Programming Phase	\$ 4,080 LS	30 Hrs
2. Site Development Phase	\$ 7,460 LS	104 Hrs
3. Schematic Design Phase	\$ 32,612 LS	350 Hrs
4. Environmental Phase	\$ 8,000 Hourly N.T.E.	
5. Design Development Phase	\$ 38,064 LS	372 Hrs
6. Construction Documents Phase	\$ 59,752 LS	539 Hrs
7. Bid Phase	<u>\$ 6,412</u> LS	<u>46</u> Hrs
8. Construction Administration/Closeout	<u>\$ 62,217</u> <u>\$ 47,267</u> LS	653 <u>488</u> Hrs
FEE SUBTOTAL / HOURS SUBTOTAL	<u>\$ 218,547</u> <u>\$ 203,597</u> LS	2094 <u>1929</u> Hrs
TOTAL CONTRACT FEE		<u>\$ 218,547</u> <u>\$ 203,597</u> LS

NOTES

- The above fee schedule shall be fully completed and included with your proposal. Payments shall be made, at minimum, monthly based on the percentage each task has been completed. In the event a task is not required or the project is canceled, the Consultant shall be paid only for work completed.
- The scope of work listed in this RFP supersedes all submitted proposals, unless the RFP has been modified by addendum or written documents from the owner.
- Fees quoted for each item shall **include** all costs associated with the item, including, but not limited to: mileage, reproduction, printing, phone calls, and postage.
- Prices quoted shall be based on the described Scope of Services and an estimated total construction plus A/E costs of **\$ 1,100,000.00**

\$3,500,000

Buffalo Police Training Facility - Design/Construction Services
LIRO ENGINEERS, INC.

Title	Phase	Loaded Rate	Estimated Additional Hours	Sub Total
Senior Engineer	8 - Construction Administration	\$ 110.00	5	\$ 550.00
Staff Engineer	8 - Construction Administration	\$ 90.00	160	\$ 14,400.00
			Total	\$ 14,950.00

Note: The level of effort for Task 8 is based on an increase of 50% on the estimated staff level engineer and 10% of the estimated senior level engineer at the time of proposal.

RE: Liro Change Order - Training Facility

Tempestoso, Leonardo <ltempestoso@buffalony.gov>

Tue 5/16/23 8:05 AM

To: Somani, Seema <:ssomani@buffalony.gov>

Seema-

I'm ok with the Change Order

Len

From: Somani, Seema <:ssomani@buffalony.gov>

Sent: Monday, May 15, 2023 4:30 PM

To: Tempestoso, Leonardo <ltempestoso@buffalony.gov>

Subject: Fw: Liro Change Order - Training Facility

Len,

Please review this change order for your approval or please forward to Karla if its her accounts.

Thanks

Seema Somani - Associate Auditor
City of Buffalo

Department of Audit & Control

Room 1230 City Hall

Buffalo, New York 14202

Phone: 716-851-5411

ssomani@buffalony.gov

From: Mann, Kathryn E. <kmann@buffalony.gov>
Sent: Monday, May 15, 2023 2:14 PM
To: Somani, Seema <ssomani@buffalony.gov>
Cc: Cunningham, Raylena A. <racunningham@buffalony.gov>
Subject: Liro Change Order - Training Facility

Please see attached change order for review and approval.

Thanks

From: John Heffron <johnvheffron@gmail.com>
Sent: Monday, May 15, 2023 12:46 PM
To: Mann, Kathryn E. <kmann@buffalony.gov>; Cunningham, Raylena A. <racunningham@buffalony.gov>
Subject: LiRo ATF 12:45pm 5/15/23 Change Order 2- Police Training Facility (note to Ms. Cunningham included)

ATTENTION: This email came from an external source. Do not open attachments. NEVER click on links YOU DON'T KNOW where its taking you. Copy, Paste, Inspect, Decide.

Hi Ms. Cunningham. ATF = Approved to form

Thanks,
John Heffron
mobile/text 716 316 4763

Sent from my iPhone